

August 28, 2025

Representative French Hill
Chairman
House Financial Services Committee
1533 Longworth House Office Building
Washington, DC 20515

Representative Andy Barr
Chairman
House Financial Services Subcommittee
on Financial Institutions
2430 Rayburn House Office Building
Washington, DC 20515

Re: Response to RFI on Current Federal Consumer Financial Data Law and Legislative Proposals

Dear Members of the House Financial Services Committee:

On behalf of the Association of National Advertisers (“ANA”), we write in response to the House Financial Services Committee’s (“Committee”) Request for Information on the Gramm-Leach Bliley Act (“GLBA”) and potential legislative proposals to account for changes in the consumer financial services sector.¹

With a mission to help shape the future of marketing, the ANA leads the industry, connecting its members, including over 120 in the financial services and banking industries, to unparalleled expertise, industry-leading resources, and an influential global network. Representing over 1,600 companies and nonprofit organizations—including over 1,000 client-side marketers, 600 marketing solutions providers, and 20,000 brands—ANA members collectively affect \$400 billion in annual marketing spending. By championing the 12-point ANA Growth Agenda and the CMO Growth Council, the ANA drives actionable change, empowers marketers, shapes the marketing ecosystem, and delivers exceptional experiences at every touchpoint. Since 1910, the ANA has been setting the agenda for industry transformation. It enables marketers to advance their ambitions, make better decisions, and create lasting impact for their organizations, consumers, and the industry. ANA members have long implemented and advocated for strong privacy protections for consumers as well as responsible data collection and use practices. The ANA is a founding member of [Privacy for America](#), a broad coalition of trade associations and companies working with Congress to pass comprehensive privacy legislation.

While the Committee considers possible updates to consumer financial data regulation, we encourage the Committee to work in tandem with the House Energy and Commerce Committee’s Privacy Working Group (“Working Group”) as it seeks to develop a preemptive federal framework for consumer data privacy. By coordinating with the Working Group, the Committee can best ensure that the GLBA continues to focus on financial data and reflects the intricacies of the financial sector, without inadvertently undermining or contradicting the Working Group’s ongoing efforts to address consumer privacy more broadly. In particular, any proposed changes to the GLBA should:

¹ House Financial Services Committee, *House Financial Services Committee Requests Feedback on Current Federal Consumer Financial Data Privacy Law and Potential Legislative Proposals* (July 31, 2025), located [here](#).

- **Preserve routine and reasonable data uses that unlock immense benefits.** Businesses have long relied upon responsible data-driven advertising to spur innovation, develop new beneficial products and services, and support robust competition in the fast-growing online marketplace. Advertising is a cornerstone of the U.S. economy, with one study estimating that, in 2024 alone, advertising supported more than 29 million jobs and \$10.4 trillion in annual sales – more than 20 percent of the U.S. Gross Domestic Product (“GDP”).² Small and start-up businesses especially depend upon data-driven advertising to connect with audiences and compete effectively with larger, more established businesses.³ Consumers similarly reap enormous benefits from the vast amount of free and low-cost information and content subsidized by online advertising. According to one study, each consumer derives more than \$30,000 in annual value through the low-cost information and services made available on the ad-supported Internet.⁴ Any updates to the GLBA should safeguard these crucial business and consumer benefits.
- **Fully preempt state laws governing financial data to bolster consistent protection for all consumers.** A fully preemptive framework would encourage a uniform approach to financial data privacy, ensuring that consumers from all states may access the same financial products and services with the same protection. States have recognized that financial data should be treated separately from other data types by routinely exempting GLBA-regulated data or entities. However, even this approach encourages fragmentation as the scope of the exemptions varies across states. A fully preemptive standard for financial data developed in coordination with the Working Group’s efforts to develop preemptive, comprehensive privacy protections would eliminate this complex regulatory patchwork and promote consistent protection for consumers regardless of their state of residence.
- **Focus on clear harms with demonstrated negative impacts on consumers.** For decades, the GLBA has provided effective safeguards for data that financial institutions have used to design their products, services, and compliance systems. This framework has encouraged responsible data sharing that has supported consumer choice, innovation, and market competition. Any potential updates should be considered carefully alongside well-functioning systems that financial institutions already have in place under the GLBA that appropriately balance strong consumer protections while fostering robust market competition and innovation. To avoid unnecessary disruptions to a longstanding and well-functioning system, we encourage the Committee to limit any potential GLBA updates to those that address concrete and demonstrated consumer harms. Moreover, any such updates should account for the complexities of the current financial system. For instance, existing state consumer privacy laws may not reflect how financial institutions interact with their customers, and such protections may be better addressed through the Working Group’s ongoing work to develop a broader preemptive privacy framework.

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² See S&P GLOBAL, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY 2024-2029 at 4 (Aug. 2025) [hereinafter “ECONOMIC IMPACT OF ADVERTISING”], located [here](#)

³ See J. Howard Beales & Andrew Stivers, *An Information Economy Without Data*, 8-9 (2022), located [here](#).

⁴ See *id.* at 2.

Thank you for your consideration of our views as you contemplate ways to best protect consumer financial data while preserving the beneficial data uses that fuel the modern economy. Please do not hesitate to contact us with any questions regarding this submission.

Sincerely,

A handwritten signature in blue ink, appearing to read "Chris Oswald", written in a cursive style.

Christopher Oswald
Group Executive Vice President & Head of Law, Ethics, and Government Relations
ANA